

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 1687 OF 2012

Mahbbat Ali alias Md. Mahamudunnabi and
others

----- Defendants-Appellants-Petitioners

=Versus=

Md. Hakim Uddin and others

----- Plaintiffs-Respondents-Opposite Parties

Mr. Syed Humayun Kabir Khadem, Advocate

----- For the Petitioners

Mr. M. Moksadul Islam with

Mr. S.M. Ariful Islam with

Mst. Hoshne Ara and

Mr. Md. Badsha Alamgir, Advocates

----- For the Opposite Parties

Judgment on: 08.08.2017

At the instance of the present defendants-appellants- petitioners, Mahbbat Ali alias Md. Mahamudunnabi and others, this Rule has been issued calling upon the opposite party Nos. 1-15 to show cause as to why the impugned judgment and decree dated 07.03.2012 and 14.03.2012 respectively passed by the learned Joint District Judge, Nilphamari in Title Appeal No. 128 of 2010 affirming the judgment and decree dated 07.10.2010 and 18.10.2010 respectively passed by learned Senior Assistant Judge, Kishoregonj, Nilphamari in Other suit No. 101 of 2009 (Kishoregonj)/ 10 of 2005 (Sadar) should not be set aside.

The relevant facts for disposal of this Rule, inter-alia are that the present opposite party Nos. 1-15 as the plaintiffs filed the Other Class

Suit No. 10 of 2005 in the court of learned Senior Assistant Judge Sadar, Nilphamari and on transfer the suit was renumbered as the Other Class Suit No. 101 of 2009 for partition of the suit land measuring 3.82 acres out of 8.25 acres described in the schedule of the plaint. The plaint case is that the suit property originally belonged to Hazer Mahmud and Zan Mamud in equal share. Hazer Mamud died leaving behind two minor sons Aftab Uddin and Hakim Uddin and also 2 (two) minor daughters. S.A. record of right was published in Khatian No. 808 in the name of Aftab Uddin and Hakim Uddin. Aftab died leaving behind the plaintiff Nos. 1-11 as his heirs. The plaintiffs have been possessing 3.82 and $\frac{1}{2}$ acres of land and have been paying Khajna to the Government. The suit land have been possessing by the co-shares in ejmali but there was no partition with the others co-sharers. When the plaintiff approached the defendants refused to partition land.

The present defendant petitioners and others defendants contested the suit by filing separate written statement denying the statements made in the plaint. The present petitioners who were the defendant Nos. 12-16, 20, 27-34 and 39 contending inter alia that their predecessors Hamid Uddin acquired 3.78 acres of land from Zan Mamud by an unregistered sale deed therefore they were shown as the permissive possessors which has been recorded in the S.A. record of right in khatian No. 808. On 12.12.1955. Zan Mamud sold 1.47 acres of land to Khaimuddin and others and Hamid Uddin got 1.30 acres by way of amicable partition between brothers and sisters. Subsequently the predecessors of the

plaintiff sold land measuring 16 decimal to the father of the defendant No. 20. Hakim Uddin himself sold 36 decimals of land by the mother of the plaintiff and there were others transactions by the predecessors of the defendant in course of time. This defendants petitioners have acquired the land by way of adverse possession under the provision of the Limitation Act because they are in possession for more than at least 12 years.

After hearing the parties the learned Assistant Judge Kishoregonj, Nilphamari decreed the suit in part in preliminary form by allocating saham for the plaintiff opposite parties Nos. 1-15 upon the land measuring 3.66 and $\frac{1}{2}$. Being aggrieved the present petitioners as the appellants preferred the Title Appeal No. 128 of 2010 in the court of learned District Judge, Nilphamari which was heard by the learned Joint District Judge, Nilphamari on transfer who by his judgment and decree dated 07.03.2012 dismissed the appeal thereby affirming the judgment and decree passed by the learned trial court. This revisional application has been filed challenging the legality of the said impugned judgment passed by the learned appellate court below and the Rule was issued thereupon.

Mr. Syed Humayun Kabir Khadem, the learned Advocate appearing for the petitioners submits that the present petitioners as the defendants adduce and produce sufficient documents as to the possession upon the suit land by producing exhibit-‘ka’-‘ka’5, the Khajna receipts and exhibit-‘Ga’-‘Ga’1 as the C.S. record of right containing the

permissive possession by the present petitioners, as such, the learned court below came to a wrongful conclusion by non considering and misleading the document on behalf of the defendants petitioners as such the Rule should be made absolute.

The learned Advocate also submits that as the petitioners proved their actual possession for more than 12 years, therefore, they have acquired right and interest under the provisions of the Limitation Act by way of adverse possession. The learned Advocate also submits that because of the possession by the present defendant petitioners a suit for partition simpliciter is not maintainable without claiming entitlement upon the suit land.

The Rule has been opposed by the present opposite party Nos. 1-15.

Mr. M. Moksadul Islam, the learned Advocate, along with the learned Advocates Mr. S.M. Ariful Islam, with Most. Hoshne Ara and Mr. Md. Badsha Aamgir, appearing on behalf of the opposite party Nos. 1-15, submits that the learned trial court after considering the document adduced and produced by the parties came to a lawful conclusion to decree the suit in part by allocating saham for the land measuring $3.66\frac{1}{2}$ and the learned appellate court concurrently found the same measurement of land in favour of the present opposite parties therefore the learned courts below committed no error of law, as such, no interference is called for and the Rule should be discharged.

The learned Advocate also submits that the present petitioners utterly failed to prove their possession upon the suit land as such the courts below lawfully refused to allocate any saham in favour of the present defendant petitioners, as only record of right cannot give any entitlement without any substantial document for title. He also submits that a permissive possessor as appeared in exhibit-‘Ga’ and ‘Ga’1 cannot by itself claim any right by way of adverse possession. The present petitioners failed to prove the essential requirements for entitlement by way of adverse possession.

Considering the above submissions made by the learned Advocate appearing for the respective parties and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular the impugned judgment and decree passed by the appellate court below and also considering the materials in the lower court records, it appears to me that a partition suit was filed by the present opposite party Nos. 1-15 as the plaintiffs claiming saham for the land measuring 3.82 acres out of 8.25 acres of land situated in S.A. khatian No. 808, C.S. Khatian No. 790, Mouza Dakkhin Chawra Borogacha, Police Station and District-Nilphamari. The plaintiff opposite parties case is that the suit land and the other lands were originally owned by Hazer Mamud and Zan Mahmud in equal share. Hazer Mahmud died leaving behind 2(two) minor sons Aftab Uddin and Hakim Uddin and two minor daughters Joytun Begum and Afzan Begum and S.A. record was prepared in their names. The said

Aftab Uddin died leaving behind the plaintiff Nos. 1-11 as his legal heirs. Afizan Begum died leaving behind two sons who are the plaintiff Nos. 13-15. The plaintiffs became owners of the land measuring 3.82 and $\frac{1}{2}$ acres by way of inheritance and purchase, as there were other measurement of land belong to other persons within the said joth. The plaintiff sought for an amicable partition on 15.12.2004 from the present defendants which was refused which prompted the plaintiff to filed the suit.

The present petitioners as the defendant along with the other defendants contested the suit by filing separate written statements. The defendant Nos. 1-6 contend that Nindalee Mamud was original owner who died leaving behind his 2(two) sons Hazer Mamud and Nazer Mamud. Nazer Mamud died leaving behind Zan Mahamud in course of time they became owners of total land measuring $2.14\frac{1}{2}$ acres and the learned courts below allocated saham for the said measurement of land.

The present petitioners as the defendant claimed entitlement upon the land measuring 3.78 acres which they claimed to have owned by way of amicable partition and also by way of purchase. I have carefully considered the claim made by the present petitioners, in particular, I have examined exhibits-‘Ka’-‘Ka’5, exhibits-‘Kha’-‘Kha’1 and exhibits-‘Ga’-‘Ga’1 which are the porches in order to get their record of right upon the claimed land. I have also noticed that the present petitioners claimed entitlement through purchase from Khaimuddin but the said

deed of purchase could not be produced in the court as a documentary evidence because as per their claim the document has been lost. I have also carefully examined exhibit-‘Ga’ and ‘Ga’1 which are the C.S. record of right which contains “অনুমতি দখলদার” in favour of the present petitioners. It transpires to me that this is the only vital documents for the present petitioners to claim land but the settle principal is that only names appearing in the record of right cannot give any entitlement upon any land without any documentary evidence in support of such record of right.

The impugned judgment and decree has only challenged by the present defendant petitioners but the other defendants in the partition suit did not come forward to contest this Rule or to challenge the impugned judgment and I have mentioned above that the present petitioners do not have any substantial evidence to prove their entitlement upon the claim land, as such, I consider that the learned courts below committed no error of law by passing the judgment and decrees without allocating any portion of land out of the total 8.25 acres.

Regarding the claim of adverse possession by the learned Advocate appearing for the petitioner, I am of the opinion that adverse possession under the provision of the Limitation Act must be hostile, notorious and continuous possession but I am, not satisfied from the record that the present petitioners could prove actual possession other than the record of right which is not sufficient for any right under the Limitation Act.

I am now inclined to consider the judgment and decree passed by the learned courts below. The learned trial court below came to a lawful conclusion to decree the suit in part in preliminary form on 18.10.2010 on the basis of the following findings:

“সার্বিক পর্যালোচনায় বাদীপক্ষ বিক্রি বাদ ৩.৬৬½ একর বিত্ত বাবদ স্বত্বদখল প্রমাণ কর-ত প-র-ছ ব-ল আদাল-তর নিকট প্রতীয়মান হ-চ্ছে। বাদীপক্ষ ৩.৬৬½ একর বিত্ত বাবদ বা-টোয়ারার ডিক্রি পেতে হকদার হচ্ছে। কাজেই বিচার্য বিষয় দুটি বাদীপক্ষের অনুকূলে আংশিকভাবে নিষ্পত্তি করা হল।
নথি দৃ-ষ্ট লক্ষ্য করা যায়, ৭৭ নং বিবাদী ৬৯ শতক বাবদ এবং ১-৬ নং বিবাদীপক্ষ ২.৪৭½ একর বিত্ত বাবদ সাহাম দাবী করেছে। সাক্ষ্য পর্যা-লাচনায় দেখা যায়, P.W.-১ আমিনুর রহমান তার জেরায় ব-ল-ছেন, “জান মামু-দর ওয়ারিশরা ২.৪৭½ একর জমি পেলে আমার আপত্তি নাই। D.W. -১ মাহামুদুন নবী ওর-ফ মহস্বত ১২-১৬, ২০, ২৭-৩৪ ও ৩৯ নং বিবাদীপ-ক্ষ জবানবন্দী দি-য়-ছ।”

The learned Appellate court concurrently found in favour of the present opposite party Nos. 1-15 and against the present petitioners on the basis of the following findings:

“সার্বিক পর্যালোচনায় বাদীপক্ষ বিক্রি বাদ ৩.৬৬½ একর বিত্ত বাবদ স্বত্বদখল প্রমাণ কর-ত প-র-ছ ব-ল আদাল-তর নিকট প্রতীয়মান হ-চ্ছে। বাদীপক্ষ ৩.৬৬½ একর বিত্ত বাবদ বা-টোয়ারার ডিক্রি পেতে হকদার হচ্ছে। কাজেই বিচার্য বিষয় দুটি বাদীপক্ষের অনুকূলে আংশিকভাবে নিষ্পত্তি করা হয়। নথি দৃ-ষ্ট লক্ষ্য করা যায়, ৭৭ নং বিবাদী ৬৯ শতক বাবদ এবং ১-৬ নং বিবাদীপক্ষ ২.৪৭½ একর বিত্ত বাবদ ছাহাম দাবী ক-র-ছ। সাক্ষ্য পর্যা-লাচনায় দেখা যায় যে পি. ডব্লিউ-১ -মাঃ আমিনুর রহমান তার জেরায় ব-ল-ছ জান মামু-দর ওয়ারিশরা ২.৪৭½ একর জমি পে-ল তাহার আপত্তি নাই। ডি. ডব্লিউ-১ মাহামুদুন নবী ওর-ফ মহস্বত ১২-১৬, ২০, ২৭-৩৪ ও ৩৯ নং বিবাদীপ-ক্ষ জবানবন্দী দি-য়-ছ। এই সাক্ষী ১-৬ বিবাদীর জেরায় উ-ল্লখ ক-র যে ১-৬ নং বিবাদীরা ২.৪৭½ একর জমি ভোগদখল কর-ছ।”

In view of the above discussions and the concurrent findings of the courts below, I consider that the learned courts below committed no

error of law by allocating saham of $3.66\frac{1}{2}$ acres in favour of the present opposite party Nos. 1-15 and also declined to allocate any saham in favour of the present petitioners. I am, therefore, not inclined to interfere upon the impugned judgment and decree passed by the learned Appellate Court below.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The Section is directed to communicate this judgment and order to the concern court immediately and the Section is also directed to send down the lower court records at once.